PLAN SUMMARY AND FUNDING MEMO

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Clients	John Albert Smith and Mary Beth Smith
Trust	The Smith Family Trust, dated **_____, 20____**
Residence	123 Main Street, Pasadena, CA 91101 (Los Angeles County)
Prepared by	**[Attorney name]**, **[Firm name]**
Memo date	October 20, 2026

1. The Plan at a Glance

Decision	Choice
Trust type	Joint revocable living trust
Plan at first death	Survivor's Trust with Optional Disclaimer Trust
Survivor's control	Survivor controls everything not disclaimed within nine months.
Disclaimer Trust terms	All net income, principal for HEMS
Specific gifts	the sum of $10,000 to Sarah Lee; the following property: my 1965 Ford Mustang, VIN 5F08C123456 to Liam James Smith; the sum of $2,500.50 to Pasadena Humane Society & SPCA
Residue	Children in equal shares, per stirpes (Prob. Code 246)
Beneficiary shares	Staged at ages 25, 30, 35
Supplemental needs	Olivia Jones
Backstop	One-half to each spouse's heirs
Options	No-contest clause: yes; survivorship: 30 days; firearms: yes; CP agreement: no

2. Fiduciaries

Role	Who
Initial trustees	John Albert Smith and Mary Beth Smith (either may act alone)
Successor trustees	1. Liam James Smith (son) 2. Olivia Jones (daughter) *Serving in order*
Executors	Surviving spouse, then Liam James Smith, Olivia Jones
Guardians	Sarah Lee and David Lee, then Olivia Jones
Incapacity	2 physician certificate(s), or a court order

3. Placeholders and Blanks to Complete

Every item below is printed in the documents as a **highlighted blank**, or is a line completed at signing. Nothing else in the documents is a placeholder.

Item	Where it appears	How to complete
Trust signing date	Trust title page, footer, Article One, signature page, Certification of Trust, General Assignment, pour-	Fill in by hand at signing, or enter the date and reassemble.

Item	Where it appears	How to complete
	over wills	
County of execution	Every notary acknowledgment	The notary completes it at signing.
Trust taxpayer identification number	Certification of Trust, paragraph 7	Write in either spouse's SSN (or the EIN, after a death) at signing.
Legal description for Residence at 123 Main Street, Pasadena, California 91101	Certification of Trust, paragraph 9	Copy it from the vesting deed or a title report.
Preparing firm and attorney	Plan summary memo header	Enter it on the "Preparing attorney" screen.
Witness names, addresses, and signing date and place	Attestation clause of each pour-over will	Completed by hand at the signing ceremony (two disinterested adult witnesses).
Notary name, date, signature, and seal	Every notary acknowledgment	Completed by the notary. Intentionally left blank.

4. Attorney Review Flags

- Joint representation: confirm a signed engagement letter with a joint representation and conflict-waiver disclosure (Rule of Professional Conduct 1.7).
- Disclaimer plan: at the first death, calendar the nine-month disclaimer deadline and instruct the survivor not to accept benefits from property that may be disclaimed.
- Supplemental needs trusts required for: Olivia Jones. Make sure beneficiary designations (life insurance, retirement accounts) name the trust, not the beneficiary.
- Charitable specific gifts: confirm each charity's exact legal name and EIN.
- Retirement accounts or life insurance listed: review the beneficiary designations and SECURE Act payout rules before naming the trust.
- Real property: prepare and record a trust transfer deed for each parcel, with a PCOR. Out-of-state real property needs its own deed to avoid ancillary probate.
- Property tax: transfers to the trust are excluded from reassessment (R&T Code 62(d)). A later transfer of the home to children may qualify for the limited Proposition 19 parent-child exclusion (R&T Code 63.2); the claim must be filed after the death.
- Firearms: advise the successor trustees about California transfer rules; consider a separate firearms list.
- Ancillary documents not prepared by this questionnaire: durable powers of attorney, advance health care directives, HIPAA releases, and trust transfer deeds.

5. Funding Checklist

Asset	Character	Action
Residence at 123 Main Street, Pasadena, California 91101 (APN 5730-012-034)	Community property	Record a trust transfer deed conveying title to the Trustees of The Smith Family Trust, with a Preliminary Change of Ownership Report (BOE-502-A) and the trust-transfer exclusion claimed (R&T Code 62(d)).
Chase checking account ending in	Community property	Ask the institution to retitle the

Asset	Character	Action
1234		account in the name of the Trustees (or add a pay-on-death designation to the trust). Provide the Certification of Trust.
Fidelity IRA ending in 9876	Separate property of John Albert Smith	Do NOT retitle. Update the beneficiary designation (usually spouse primary; trust or individuals contingent) after reviewing SECURE Act payout rules.
Schwab brokerage account ending in 5555 (inheritance)	Separate property of Mary Beth Smith	Complete the custodian's trust account form and retitle the account to the Trustees. Provide the Certification of Trust.

- Real property: trust transfer deed, PCOR (BOE-502-A), documentary transfer tax exemption noted (R&T Code 11930).
- Bank and brokerage accounts: retitle to "John Albert Smith and Mary Beth Smith, Trustees of The Smith Family Trust, dated **_____, 20____**," using the Certification of Trust.
- Retirement accounts and life insurance: do not retitle; update beneficiary designations.
- Vehicles and household goods: covered by the General Assignment; DMV retitling is optional.

6. Signing Instructions

- Trust Agreement: both spouses sign and initial each page; sign before a notary (acknowledgment attached).
- Certification of Trust and General Assignment: both spouses sign before a notary.
- Pour-over wills: each spouse signs in the presence of two adult witnesses who are present at the same time (Prob. Code 6110). Use witnesses who are not beneficiaries (Prob. Code 6112). Wills are not notarized.
- Keep the original trust and wills in a safe place known to the successor trustee; give copies of the Certification of Trust to financial institutions.

7. After the First Death

- Serve the trustee's notification under Prob. Code 16061.7 within 60 days (only for any part of the trust that becomes irrevocable).
- File a Change in Ownership Statement (Death of Real Property Owner, BOE-502-D) within 150 days (R&T Code 480).
- Consider the portability election on Form 706: due nine months after death (fifteen with extension), or up to five years for estates not otherwise required to file (Rev. Proc. 2022-32).
- Decide on any disclaimer within nine months, before the survivor accepts benefits.